

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Bernhardt	Team: Team # 8	CCRB Case #: 200303209	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/23/2003 10:40 PM	Location of Incident: § 87(2)(b)	Precinct: 47	18 Mo. SOL 10/23/2004	EO SOL 10/23/2004	
Date/Time CV Reported Thu, 04/24/2003 1:13 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/05/2003 11:45 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Kevin Paynter	91934	919543	047 PCT
3. POM Michael Mchugh	09788	925715	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Force: Officers used physical force against § 87(2)(b)	§ 87(2)(b)
B. Officers	Abuse: Officers entered and searched § 87(2)(b) in the Bronx.	§ 87(2)(b)
C.SGT Kevin Paynter	Abuse: Sergeant Kevin Paynter refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)
D.POM Michael Mchugh	Abuse: Officer Michael Mchugh refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)

Synopsis

Complainant § 87(2)(b) alleged that on April 23, 2003, two unidentified plainclothes officers pulled her off her porch and entered and searched her home at § 87(2)(b) in the Bronx. When § 87(2)(b) called the police to report the incident, four uniformed officers responded to her home. § 87(2)(b) alleged that two of these officers, who were travelling in RMP #2243, refused to provide their shield numbers upon request. The officers assigned to RMP#2243 at the time of the incident were identified in IAB log 03-09504 as Sergeant Kevin Paytner and Officer Michael McHugh of the 47th Precinct. On April 24, 2003, § 87(2)(b) called IAB and filed a complaint.

This case was forwarded by IAB to CCRB and initially assigned to Investigator Avi Springer of Team 1. Investigator Springer called § 87(2)(b) on 5/9/03, 5/14/03, 5/16/03, 5/19/03 and 5/27/03 at the phone number she provided in her complaint. On each of these attempts, the phone was picked up by a computer modem or fax machine. Inv. Springer used the Coles Directory, DMV database and Metrosearch but was unable to obtain a viable alternate number. Inv. Springer sent letters to § 87(2)(b) on 5/9/03 and 5/16/03, but she did not respond. On 5/27/03, Inv. Springer traveled to § 87(2)(b) in an attempt to interview § 87(2)(b) but no one was home and no one responded to a contact letter left in § 87(2)(b) mailbox. § 87(2)(g)

On 9/18/03, § 87(2)(b) walked in to the CCRB. She stated that she wanted to have her case reopened and also wanted to complain about a separate incident on § 87(2)(b). § 87(2)(b) explained that she had been in Florida for the past 2½ months but was now back in New York and wished to pursue her case. She added that she did not have a phone but had tried to call the CCRB before and had left a message on an unspecified answering machine. § 87(2)(b)

A letter was sent to § 87(2)(b) on 10/9/03 asking her to schedule a CCRB appointment, and a second letter was left in her mailbox on 10/20/03. § 87(2)(b) called the CCRB on 10/21/03, provided a new contact number and made an appointment to be interviewed on 10/28/03 at the CCRB. § 87(2)(b) later called to cancel the appointment. She rescheduled for 11/6/03 but did not appear. She made a third appointment for 11/18/03 but again called and cancelled. She made a fourth appointment for 12/2/03, but failed to appear a second time. On 12/12/03, § 87(2)(b) was contacted by phone and told that if she did not provide a statement in the near future, her case would be closed. § 87(2)(b) complained that she was busy and that she was moving back to Florida in a week anyway. Inv. Bernhardt then offered to come to the Bronx and interview § 87(2)(b) at her home. § 87(2)(b) agreed, and an appointment was made for 12/16/03. On 12/16/03, Inv. Bernhardt traveled to § 87(2)(b) but § 87(2)(b) did not answer the door and did not appear to be home.

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: